# Notice to vacate in rental properties

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Or, you can find information about renters giving notice (https://www.consumer.vic.gov.au/housing/renting/moving-out-giving-notice-and-evictions/giving-notice-as-a-renter/renter-giving-notice) or evictions (https://www.consumer.vic.gov.au/housing/renting/moving-out-giving-notice-and-evictions/evictions-and-immediate-notice/evictions-and-possession-orders) on other pages.

There are some different rules for:

- Notice to vacate to rooming house residents (https://www.consumer.vic.gov.au/housing/renting/moving-out-giving-notice-and-evictions/notice-to-vacate/giving-notice-to-a-rooming-house-resident)
- Notice to vacate to caravan park residents (https://www.consumer.vic.gov.au/housing/renting/moving-out-giving-notice-and-evictions/notice-to-vacate/giving-notice-to-a-caravan-park-resident)
- Notice to vacate to site tenants in a residential park or village (https://www.consumer.vic.gov.au/housing/renting/moving-out-giving-notice-and-evictions/notice-to-vacate/giving-notice-to-a-site-tenant-in-a-park)

## What is a notice to vacate?

When a rental provider (landlord) wants a renter (tenant) to move out of the property, they can either talk to the renter to reach an agreement or give the renter a notice to vacate.

A notice to vacate is a formal statement that the rental provider wants to end the rental agreement. A rental provider can only give a notice to vacate for certain reasons.

If a renter does not leave by the termination date in the notice to vacate, the rental provider can apply to VCAT for an eviction or possession order (https://www.consumer.vic.gov.au/housing/renting/moving-out-giving-notice-and-evictions/evictions-and-immediate-notice/evictions-and-possession-orders).

## Reasons rental providers can and cannot give notice

Rental providers can only give notice for certain reasons. These reasons are listed in the tables on this page.

Other reasons for giving notice are not valid. A rental provider must provide a reason when they give someone notice to vacate. They cannot give notice without a valid reason.

In some situations, a rental provider can give a notice to vacate before the end of the rental agreement.

A rental provider cannot give someone notice for doing something, or saying they will do something, they are legally allowed to do.

For example, a rental provider cannot give a renter notice to vacate for:

- requesting repairs
- asking to have a pet
- challenging a rent increase.

A notice to vacate is not valid if it is unlawful discrimination (https://www.consumer.vic.gov.au/housing/renting/legal-and-dispute-support/unlawful-discrimination).

### Agreement to leave without formal notice

A rental provider may ask a renter to leave without giving them a notice to vacate. The renter does not have to agree to leave. If they do, they should record this in writing.

### Immediate notice

Rental providers can give a renter a notice to vacate immediately if the renter or their visitor does any of the following:

- intentionally or recklessly causes serious damage to the property, including safety equipment and common areas
- puts neighbours, the rental provider or the provider's agent, or their contractors or employees, in danger.

Read more about immediate notice (https://www.consumer.vic.gov.au/housing/renting/moving-out-giving-notice-and-evictions/evictions-and-immediate-notice/immediate-notice). There are additional rules for violent or dangerous behaviour in a rooming house (https://www.consumer.vic.gov.au/housing/renting/moving-out-giving-notice-and-evictions/evictions-and-immediate-notice/violent-or-dangerous-behaviour-rooming-houses) or violent or dangerous behaviour in a caravan park (https://www.consumer.vic.gov.au/housing/renting/moving-out-giving-notice-and-evictions/evictions-and-immediate-notice/violent-or-dangerous-behaviour-caravan-parks).

## How to give notice

Rental providers should use the Notice to vacate to renter/s of rented premises (Word, 760KB) (https://www.consumer.vic.gov.au/library/forms/housing-and-accommodation/renting/notice-to-vacate-to-renter-of-rented-premises.docx).

The notice must:

- be addressed to the renter
- give the reason the rental provider is ending the agreement
- be signed by the rental provider (or their agent)
- be sent with enough time for it to get to the renter
- state the date the renter has to leave by (the termination date).

### Delivering a notice to vacate

The notice to vacate must be delivered to the renter at the rented premises, either by:

- registered post
- electronic communication (such as email), if the renter has given consent to receive notices and other documents this way
- hand (giving the notice personally to the renter).

Allow for mail delivery times, which depend on:

- your delivery method
- where you are mailing your notice from.

It is important to allow enough time for mail to be delivered if you are posting the notice. The Australia Post website can help calculate delivery times. If you are delivering the notice by mail you must use registered post.

## Challenging a notice to vacate

A renter can challenge a notice to vacate if they:

- believe it was not given to them properly
- disagree with the reason given on the notice
- were given the notice as a result of family violence.

Find out about challenging a notice to vacate (https://www.consumer.vic.gov.au/housing/renting/moving-out-giving-notice-and-evictions/notice-to-vacate/challenging-a-notice-to-vacate).

## When a renter does not leave

If a renter does not leave after being given notice, rental providers can apply for a possession order. Find more information on possession orders and evictions (https://www.consumer.vic.gov.au/housing/renting/moving-out-giving-notice-and-evictions/evictions-and-immediate-notice/evictions-and-possession-orders).

## When a renter dies

If there is only one renter in a property and they die, the rental provider can end the rental agreement by giving a notice to vacate to the deceased's legal personal representative or next of kin. Read more about what happens when a renter or rental provider dies (https://www.consumer.vic.gov.au/housing/renting/moving-out-giving-notice-and-evictions/if-a-renter-or-rental-provider-dies).

## Ending an agreement early – reasons and notice periods

A rental provider can only end a rental agreement early (before its stated end date) for one of the following reasons. If the rental provider does not give one of the listed reasons, the notice to vacate is not valid.

There are different timeframes for giving a renter a notice to vacate depending on the reason the notice is being given.

Read more about some of the common reasons rental providers give renters a notice to vacate:

- late or unpaid rent (https://www.consumer.vic.gov.au/housing/renting/rent-bond-bills-and-condition-reports/rent/late-or-unpaid-rent)
- keeping pets without consent (https://www.consumer.vic.gov.au/housing/renting/repairs-alterations-safety-and-pets/pets)
- the renter has not paid bond (https://www.consumer.vic.gov.au/housing/renting/rent-bond-bills-and-condition-reports/bond/bond-amounts-and-paying-a-bond)

## List of reasons rental provider can ask renters to leave early

| Reason for notice to vacate before a rental agreement ends | Minimum notice required |
|---|---|
| The renter or their visitor intentionally or recklessly causes serious damage to the property, including safety equipment and common areas | Immediate |
| The renter or their visitor puts neighbours, the rental provider or the provider's agent, or the rental provider or agent's contractors or employees, in danger | Immediate |
| The premises are unfit for human habitation, destroyed totally, or destroyed to the extent that they are unsafe | Immediate |
| The renter or anyone else living in the rental property seriously threatens or intimidates the rental provider, their agent, or the rental provider or agent's contractors or employees | 14 days |
| The renter owes at least 14 days rent | 14 days |
| The renter has failed to comply with a VCAT compliance order | 14 days |
| The renter has already been given 2 breach of duty notices and the same breach occurs | 14 days |
| The property is being used for illegal purposes | 14 days |
| The renter has brought in other renters or sub-letters without consent | 14 days |
| The renter has not paid the bond as agreed | 14 days |
| The renter has a child under 16 years of age living at the premises when the rental agreement says this is not allowed | 14 days |
| The rental provider is a government housing authority and the renter misled the authority so they could get social housing | 14 days |
| The renter has been involved in a drug-related activity in public housing | 14 days |
| The renter is keeping a pet without consent and VCAT has made an order excluding the pet | 28 days |

## Notice to vacate – reasons and notice periods

Rental providers (landlords) cannot issue a renter with a notice to vacate at the end of a fixed term agreement without a valid reason.

Generally, the standard amount of notice that needs to be provided for a renter to vacate with a valid reason is 90 days, but in some situations it can be less. See the list below.

In some cases, the rental provider must include evidence with the notice to vacate, such as a building permit or statutory declaration. Read the evidence requirements in the table below.

### List of reasons a rental provider can give notice to vacate

If a renter is on a fixed-term agreement, a rental provider issuing a notice to vacate must specify a termination date on or after the end date listed in the rental agreement and a valid reason listed in the table below.

If a renter is on a periodic residential rental agreement (month-by-month), a rental provider can issue a notice to vacate at any time, providing it is for a valid reason.

Some of the reasons for notice to vacate have specific evidence requirements. This means that the rental provider must supply a form of evidence demonstrating that the reason they have given in the notice to vacate is genuine.

If a notice to vacate requires specific evidence that is not supplied, the notice is invalid.

Detail on the required evidence is described in the table below, where applicable.

| Reason for notice to vacate | Evidence requirements | Minimum notice required |
|---|---|---|
| The **rental provider is planning to move in** at the end of the fixed-term rental agreement. If this is the case, it must have been listed in the 'additional terms' section of the rental agreement. If you are giving a notice to vacate for this reason, you must include evidence with the notice to vacate. | Both of the following:<br>• the rental agreement (section 91ZW requires that this must be stated in the rental agreement); and<br>• a witnessed Statutory Declaration (https://www.justice.vic.gov.au/statdecs) signed by the rental provider, confirming the date they intend to resume occupancy. **Note:** if there is more than one rental provider, each rental provider must provide a statutory declaration. | 14 days |
| **Reconstruction, repairs or renovations** are planned and cannot go ahead unless the renter vacates. All necessary permits have been obtained. If you are giving a notice to vacate for this reason you must include evidence with the notice to vacate. | Both of the following:<br>• Photographic proof that **repairs** are required; and<br>• Contract with, or quotation from, a suitably qualified tradesperson for carrying out planned **repairs**, stating:<br>the nature of the **repairs** required,<br>the reasons why the premises need to be vacated by the renter in order to carry out the repairs, and<br>an estimate of the length of time it will take to complete the **repairs**.<br>Or the following:<br>• Building permit for **repairs** or **renovation**.<br>**Note:** Only a Building permit satisfies the requirements of documentary evidence to support a NTV for **renovations**. | 90 days (previously 60 days) |

| Reason for notice to vacate | Evidence requirements | Minimum notice required |
|---|---|---|
| The **rental property is going to be demolished** and all necessary permits have been obtained. If you are giving a notice to vacate for this reason you must include evidence with the notice to vacate.<br><br>**Note:** If a notice to vacate is issued for this reason, the rental provider must not re-let the premises to a person for use primarily as a residence before the end of 6 months after the date on which notice was given, unless approved by VCAT. | Both of the following:<br>• Building permit for demolition; and<br>• Contract with a suitably qualified Builder-demolisher, stating the date that demolition will occur. | 90 days (previously 60 days) |
| The **rental provider wants to do something else with the property** (for example, use it for a business). If you are giving a notice to vacate for this reason you must include evidence with the notice to vacate. | The following:<br>• A witnessed Statutory Declaration (https://www.justice.vic.gov.au/statdecs) of intention to use the premises for business purposes, including details of the particular business and stating that the premises will not be re-let as a residence before the end of 6 months after the date the notice was given. **Note:** if there is more than one rental provider, each rental provider must provide a statutory declaration.<br><br>And one or more of the following:<br>• the ABN of the business; or<br>• Business registration or license; or<br>• Council planning permit. | 90 days (previously 60 days) |

| Reason for notice to vacate | Evidence requirements | Minimum notice required |
|---|---|---|
| The **rental provider, a member of their immediate family (including parents and parents-in-law) or a dependent (who normally lives with the rental provider) will be moving in**. If you are giving a notice to vacate for this reason you must include evidence with the notice to vacate. | A witnessed Statutory Declaration (https://www.justice.vic.gov.au/statdecs) signed by the rental provider, stating either:<br>• they intend to reside in the rented premises, or<br>• the name of the person who will occupy the rented premises, their relationship to the rental provider, and declaring whether the person is a dependent, and<br>• that the rental provider understands that they must not re-let the premises to any person (other than the person named to be moving in to the rented premises in the statutory declaration) for use primarily as a residence before the end of 6 months after the date on which notice was given, unless approved by VCAT.<br><br>**Note:** if there is more than one rental provider, each rental provider must provide a statutory declaration. | 90 days (previously 60 days) |

| Reason for notice to vacate | Evidence requirements | Minimum notice required |
|---|---|---|
| The **property is to be sold or put up for sale** and vacated immediately after the rental agreement ends. If you are giving a notice to vacate for this reason you must include evidence with the notice to vacate.<br><br>**Note:** The rental provider cannot shorten the length of the rental agreement to give a notice to vacate for this reason.<br><br>In addition, if a notice to vacate is issued for this reason, the rental provider must not re-let the premises to a person for use primarily as a residence before the end of 6 months after the date on which notice was given, unless approved by VCAT. | One of the following:<br>• Contract of sale, signed by the vendor and purchaser and dated; or<br>• Contract of engagement/authority to sell with a licensed estate agent; or<br>• Preparation of a contract of sale prepared by a conveyancer or an Australian legal practitioner. | 90 days (previously 60 days) |
| A **government authority owns the property and needs it for public purposes**. If you are giving a notice to vacate for this reason you must include evidence with the notice to vacate. | One of the following:<br>• Provision of acquisition details (public information); or<br>• Compulsory letter of acquisition from the government. | 90 days (previously 60 days) |

| Reason for notice to vacate | Evidence requirements | Minimum notice required |
|---|---|---|
| The rental provider is a government housing authority and **the renter no longer meets the criteria for social housing.** | NA | 90 days |

## Mortgagee giving notice to vacate

A mortgagee (lender) such as a bank can give a renter a notice to vacate if they are repossessing the property. There are specific provisions for this. For more information, refer to the Residential Tenancies Act or contact us (https://www.consumer.vic.gov.au/contact-us).

## Forms you might need

To give a renter notice to vacate a property, rental providers should use this form:

- Notice to vacate to renter/s of rented premises (Word, 760KB) (https://www.consumer.vic.gov.au/library/forms/housing-and-accommodation/renting/notice-to-vacate-to-renter-of-rented-premises.docx).

## Sections of the Act

If you want to know what the law says about notices to vacate, you can read these sections of the Residential Tenancies Act 1997 (https://www.legislation.vic.gov.au/in-force/acts/residential-tenancies-act-1997):

- Part 2, Division 9 – Termination of residential rental agreement.

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We acknowledge the Traditional Owners of the lands, seas and skies. We pay our respects to their Elders past and present, and to future generations who will continue to care for Country.



(https://www.consumer.vic.gov.au/resources-and-tools/yarrka-barring-resources-for-first-nations-people)

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